

HOUSE No. 4033

The Commonwealth of Massachusetts

PRESENTED BY:

Erika Uyterhoeven and Mike Connolly

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for legal voting rights in municipal elections for non-citizen residents of the city of Somerville.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>4/9/2025</i>

HOUSE No. 4033

By Representatives Uytterhoeven of Somerville and Connolly of Cambridge, a petition (accompanied by bill, House, No. 4033) of Erika Uytterhoeven (with the approval of the mayor and city council) relative to providing for legal voting rights in municipal elections for non-citizen residents of the city of Somerville. Election Laws. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for legal voting rights in municipal elections for non-citizen residents of the city of Somerville.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of section 1 of chapter 51 of the General
2 Laws or any other general or special law, rule or regulation to the contrary, any non-citizen
3 residing in the City of Somerville, who is ineligible to vote due to citizenship status under state
4 law, but who is otherwise eligible to vote under state law, may upon application have their names
5 entered on a list of voters established by the board of election commissioners for the city of
6 Somerville and may thereafter vote in any election for local offices and local ballot questions in
7 accordance with this Act. Such non-citizen residents shall remain eligible to vote in in any
8 election for local offices and local ballot questions in the City of Somerville for so long as they
9 remain domiciled in the City of Somerville. For the purposes of this Act, “local voters” are
10 anyone who is eligible to vote pursuant to this act in a local election or upon a local ballot
11 question in the City of Somerville.

12 SECTION 2. Said board of election commissioners shall establish a separate registration
13 list for local voters who shall fill out an alternative registration form. Said board shall create and
14 print, at the city of Somerville's expense, the special registration form needed for the purpose of
15 registering local voters.

16 SECTION 3. Said board is hereby authorized to promulgate regulations, guidelines and
17 forms to implement the purpose of this act. The voter registration forms shall include a
18 declaration to be signed under pains and penalties of perjury by the voter applicant that they are a
19 resident of the city of Somerville.

20 SECTION 4. The City of Somerville is hereby authorized to pass ordinances to
21 implement the purpose of this act subject to all the provisions of the Somerville city charter.

22 SECTION 5. If a local ballot question appears on a state election ballot, the board shall
23 print a separate ballot for the local ballot question at the expense of the City of Somerville.

24 SECTION 6. Nothing in this act shall be construed to confer upon local voters the right to
25 vote for any state or federal office or any state or federal ballot questions.

26 SECTION 7. Any local voter who becomes eligible to vote in an election in accordance
27 with the provisions of section 1 of chapter 51 of the General Laws shall be taken off the separate
28 registration list and notified that he or she may register as a regular voter in accordance with state
29 law, regulations, and guidelines.